

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1417

By: West (Josh)

AS INTRODUCED

An Act relating to school safety; creating the School Access for Emergency Response Act; defining terms; creating a grant program within the State Department of Education; construing grant purposes; prescribing the administration and implementation of the grant program; creating the grant selection committee; requiring promulgation of rules; directing the appointment of committee members; implementing certain grant eligibility criteria; requiring certain applicant considerations; specifying award and distribution dates; requiring school districts to report on the grant program; mandating reporting to the Legislature; creating the School Access for Emergency Response Revolving Fund; specifying fund sources; allowing appropriation; clarifying fund purpose; prescribing fund expenditure limitations; construing disbursement of fund amounts; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 5-149.5 of Title 70, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "School Access for Emergency Response Act" or the "SAFER Act".

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 5-149.6 of Title 70, unless
3 there is created a duplication in numbering, reads as follows:

4 As used in the School Access For Emergency Response Act:

5 1. "Board" means the State Board of Education;

6 2. "Crisis Management Plan" means: a plan including tactical
7 strategies and actions for responding to an emergency;

8 3. "Department" means the State Department of Education;

9 4. "Grant program" means the School Access for Emergency
10 Response Grant Program created in Section 3 of this act;

11 5. "Interoperability" means the ability of one or more radio
12 systems to communicate with another radio system and other
13 communications devices;

14 6. "Interoperable technology" means software and hardware that
15 enables two different radio systems and other communications devices
16 to communicate;

17 7. "Memorandum of understanding" means an agreement between two
18 or more parties that is not legally binding to formalize a working
19 relationship;

20 8. "Other communications network" means any public or private
21 wire or wireless communications network that allows for real-time
22 voice or data communications between a public safety answering
23 point, schools, and first responders;

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1 9. "Public safety answering point" means a facility equipped
2 and staffed to provide emergency telephone service;

3 10. "Radio system" means a private network for voice
4 communications;

5 11. "Revolving Fund" means the School Access for Emergency
6 Response Revolving Fund created in Section 6 of this act;

7 12. "Safety team" means personnel who have a role in crisis
8 management plans;

9 13. "School" means elementary, middle, and secondary schools
10 supported by public taxation and shall include charter schools
11 established pursuant to the Oklahoma Charter Schools Act; and

12 14. "Standards based" means radio specifications defined by a
13 national association of the telecommunications industry that every
14 manufacturer can follow to implement equipment interoperability.

15 SECTION 3. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 5-149.7 of Title 70, unless
17 there is created a duplication in numbering, reads as follows:

18 A. There is hereby created in the State Department of Education
19 the School Access for Emergency Response Grant Program to provide
20 grants to schools for needed interoperable communication hardware,
21 software, equipment maintenance, and training to allow for seamless
22 communications between new or existing school communications systems
23 and first responder communications systems.

1 B. Grant recipients may use the money received through the
2 grant program for the following purposes:

3 1. To deliver training programs to teach district-based
4 security personnel and appropriate school personnel basic procedures
5 for effective communications with first responders in an emergency;

6 2. To implement an interoperable technology solution to provide
7 or to upgrade the following:

8 a. a system or technology that can be activated and
9 deactivated by a public safety answering point, a
10 network administrator, and a school over both the
11 radio system and other communications networks,

12 b. radio and other technology bridge ability that is
13 nonradio vendor specific for connecting independent
14 school networks across the school district and public
15 safety networks in the region, and

16 c. an interoperability solution that operates over radio
17 networks and other communications networks;

18 3. To maintain or improve a school's existing interoperable
19 communication hardware or software or to provide interoperable
20 communication hardware and software to a school that does not yet
21 have it; or

22 4. For any necessary radio system capacity expansions where
23 school loading has been determined to have a significant impact on
24 public safety system loading.

1 C. The State Department of Education shall administer the grant
2 program. Subject to the availability of funds, grants shall be paid
3 out of the Revolving Fund created in Section 6 of this act.

4 D. The State Board of Education, in consultation with the grant
5 selection committee created in subsection E of this section, shall
6 implement the grant program in accordance with this act. The
7 Department shall promulgate rules necessary to implement the
8 requirements of this act. At minimum, such rules shall specify the
9 time frames for applying for grants, the form of the grant program
10 application, and the time frames for distributing grant money.

11 E. There is hereby created the grant selection committee to work
12 with the State Board of Education to determine whether a grant
13 applicant satisfies the criteria to receive a grant. The committee
14 shall be composed of seven (7) members appointed as specified in
15 this subsection. The members of the committee shall serve without
16 compensation, but shall be reimbursed for all actual and necessary
17 expenses incurred while engaged in the discharge of official duties
18 pursuant to this act in accordance with the State Travel
19 Reimbursement Act. Members of the committee shall meet as often as
20 deemed necessary by the Board to accomplish the work of the
21 committee. Members of the committee shall be appointed on or before
22 November 1, 2025, as follows:

23 1. The Governor shall appoint one member;
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1 2. The Speaker of the Oklahoma House of Representatives shall
2 appoint one member who represents urban or suburban school
3 districts, and one member who represents the chiefs of police;

4 3. The President Pro Tempore of the Oklahoma State Senate shall
5 appoint one member who represents rural school districts, and one
6 member who represents county sheriffs;

7 4. The Commissioner of the Department of Public Safety shall
8 appoint one member; and

9 5. The Superintendent of Public Instruction shall appoint one
10 member.

11 SECTION 4. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 5-149.8 of Title 70, unless
13 there is created a duplication in numbering, reads as follows:

14 A. A school is required to have a memorandum of understanding
15 with its regional public safety answering point or the local
16 law enforcement agency or agencies that serve the school for
17 communications interoperability to be eligible to apply for a
18 grant under this act. To receive a grant, a school must submit an
19 application to the Department in accordance with rules promulgated
20 by the Department. At minimum, the application must include the
21 following information:

22 1. A description of the school's current interoperable
23 communication technology, if any;

24 2. A description of efforts that the school has taken to

1 coordinate emergency communication with law enforcement, 9-1-1
2 system administrators, and other schools; and

3 3. A description of the purpose or purposes for which the
4 school would plan to use the grant money, including, but not limited
5 to, proposed training programs, joint exercise plans, and
6 interoperability technology solutions.

7 B. The grant selection committee created in Section 3 of this
8 act shall review the applications received pursuant to this section.
9 In awarding grants, the grant selection committee shall consider
10 whether the school has a crisis management plan in place with safety
11 team members designated for communications with first responders.

12 C. Subject to the availability of funds, on or before June 30,
13 2026, and on or before June 30 each year thereafter for the duration
14 of the grant program, the Board shall award grants as provided in
15 this act. The Board shall distribute the grant money within thirty
16 (30) days after the grants are awarded.

17 SECTION 5. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 5-149.9 of Title 70, unless
19 there is created a duplication in numbering, reads as follows:

20 A. On or before January 15, 2028, and on or before January 15
21 each year thereafter for the duration of the grant program, each
22 school district with schools that received a grant through the grant
23 program provided in this act shall submit a report to the
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1 Department. At minimum, the report shall include the following
2 information:

3 1. The number of schools within the district that used grant
4 money to provide training programs to appropriate personnel
5 regarding effective communications with first responders in an
6 emergency;

7 2. The number of schools within the district that used grant
8 money to provide or upgrade its interoperable technology, including
9 interoperable communication hardware or software; and

10 3. The estimated number of enrolled students that benefitted or
11 will benefit from how the grant money was utilized.

12 B. On or before May 30, 2028, and on or before May 30 each year
13 thereafter for the duration of the grant program, the Department
14 shall present a summarized report of the activities of the grant
15 program to the Oklahoma Legislature.

16 SECTION 6. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 5-149.10 of Title 70, unless
18 there is created a duplication in numbering, reads as follows:

19 A. There is hereby created in the State Treasury a revolving
20 fund for the State Department of Education to be designated the
21 "School Access for Emergency Response Revolving Fund". The fund
22 shall be a continuing fund, not subject to fiscal year limitations,
23 and shall consist of all monies received by the Department of
24 Education from:

1 1. Reimbursements, grants, or other monies received from other
2 state agencies and entities for establishing or maintaining
3 interoperable communication between schools and public safety
4 officials;

5 2. Gifts, donations, and bequests; and

6 3. Monies appropriated or apportioned by the Legislature.

7 B. All monies accruing to the credit of the School Access for
8 Emergency Response Revolving Fund are hereby appropriated and may be
9 budgeted and expended by the State Department of Education for the
10 purpose of providing grants for the School Access for Emergency
11 Response Grant Program as created in Section 3 of this act.

12 C. Expenditures from the School Access for Emergency Response
13 Revolving Fund shall be made upon warrants issued by the State
14 Treasurer against claims filed as prescribed by law with the
15 Director of the Office of Management and Enterprise Services for
16 approval and payment. Expenditures from the School Access for
17 Emergency Response Revolving Fund shall not exceed Five Million
18 Dollars (\$5,000,000.00) in any fiscal year and shall be divided
19 equally among grant applicants who were approved by the State Board
20 of Education and grant selection committee as provided for in
21 Section 3 of this act.

22 SECTION 7. This act shall become effective November 1, 2025.
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